

FLOOR AMENDMENT

HOUSE OF REPRESENTATIVES

State of Oklahoma

SPEAKER:

CHAIR:

I move to amend HB3453 _____
Of the printed Bill
Page _____ Section _____ Lines _____
Of the Engrossed Bill

By deleting the content of the entire measure, and by inserting in lieu thereof the following language:

AMEND TITLE TO CONFORM TO AMENDMENTS

Adopted: _____

Amendment submitted by: Clay Staires

Reading Clerk

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

FLOOR SUBSTITUTE
FOR

HOUSE BILL NO. 3453

By: Staires and Wilk of the
House

and

Reinhardt of the Senate

FLOOR SUBSTITUTE

An Act relating to eminent domain; establishing
burdens of proof; providing for award of attorney
fees and costs to prevailing property owner;
providing for codification; and providing an
effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified
in the Oklahoma Statutes as Section 42 of Title 27, unless there is
created a duplication in numbering, reads as follows:

A. In any judicial condemnation proceeding, other than those
authorized by Section 7 of this title, the owner of an interest in
property sought to be condemned shall be entitled, through the
timely filing of an exception to the report of the commissioners in
such proceeding, to a hearing on the issues of public use or

1 necessity of the taking. At any such hearing, the condemning
2 authority shall bear the burden of proving by a preponderance of the
3 evidence that the proposed taking is for a public use authorized by
4 law, and that the property sought to be taken is reasonably
5 necessary to accomplish that public use. The burden of proof shall
6 remain with the condemning authority at all times, and a resolution
7 or declaration of necessity from the condemning authority shall not,
8 in and of itself, be conclusive or sufficient evidence of necessity.

9 B. If, upon a hearing on public use or necessity, the
10 condemning authority shall fail to establish its right to condemn
11 the property, or any part thereof, the property owner shall be
12 entitled to an award of reasonable attorney fees, costs, and expert
13 witness fees, to be taxed and collected as costs in a civil action.

14 SECTION 2. This act shall become effective November 1, 2026.
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16 60-2-17170 JL 03/17/26
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